BEFORE THE NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH

I.A.No.06/BB/2019 in
C.P.(CAA)No.26/BB/2017
U/R 11 of NCLT Rules, 2016

In the matter of

M/s. Go Go International Pvt. Ltd.,
Rep.by its Company Secretary and
PA Holder, Sri. Anurag Srivastava
No.5/6, 2nd Cross, KHB Industrial Area,
Yelahanka,
Bangalore – 560 064. - Petitioner/Transferee

with

The Registrar of Companies
E Wing, 2nd Floor,
Kendriya Sadan,
Koramangala,
Bangalore – 560 034. - Respondent

Date of Order: 11th March, 2019

Coram: 1. Hon'ble Shri Rajeswara Rao Vittanala, Member (Judicial)
2. Hon'ble Dr. Ashok Kumar Mishra, Member (Technical)

Parties/Counsels Present:

For the Petitioner : Shri Bonny Kariyappa
For the Respondent : None

COMMON ORDER

Per: Dr. Ashok Kumar Mishra, Member (Technical)

1. IA No.06/BB/2019 in CP.(CAA)No.26/BB/2017 is filed by M/s. Go Go International Private Limited (Petitioner/Transferee) U/R 11 of the NCLT Rules, 2016, by inter alia, seeking to

Condone the delay of two months in compliance in complying with order of the Tribunal dated 22.02.2018 with regard to the submission of the certified copy of order passed in CP(CAA)No.26/BB/2017.

2. Heard Shri Bonny Kariyappa, learned Counsel for Petitioner. He submits that the Common Order dated 22.02.2018 was received by the Company on 28.03.2018, thus certified copy of the Common Order was filed in form INC-28 with the Registrar of Companies, Karnataka on 31.05.2018 with a delay of two months.

3. The Learned Counsel further submits that since five Transferor Companies were involved, the officers of the Applicant were under the impression that separate forms are to be filed for each of the Companies and accordingly, they had instructed their Advocate to apply for additional certified copies from the Registry of this Tribunal. However, it was later clarified from the Registrar that since a common order is passed, filling of one Form would suffice. In view of the matter, there was delay in submitted the Form with ROC. The delay is neither intentional nor deliberate but for the said bona fide reasons. Therefore, the learned Counsel for the Petitioner urged the Tribunal to condone the delay of two months and to direct the Registrar to accept the Form INC-28.

4. We have carefully perused the pleadings of the party, and order passed by the Tribunal. We are convinced with the reasons for delay for submitting certified copy of the Tribunal with the Registrar.. Therefore, we are inclined to condone the delay in submitting certified copy.

5. Hence, IA No.06/BB/2019 in CP(CAA)No.26/BB/2017 is allowed by condoning the delay of 2 months in submitting the certified copy of Common Order dated 22.02.2018, passed in the Registrar of Companies, Karnataka, by way of Form INC-28.

Accordingly, the Registrar of Companies, Karnataka is directed to accept the Form INC-28 and take necessary action.

(ASHOK KUMAR MISHRA)
MEMBER, TECHNICAL

(RAJESWARA RAO VITTANALA)
MEMBER, JUDICIAL

Shruthi